

15. *Gardner v. Omnitrans, et al*, Case No. CIVSB2422411
Defendant County's Motion for Attorneys' Fees
5/21/26, 9:00 a.m., Dept. S-17

The Court is cognizant that the Defendant County withdrew its Motion for Summary Judgment (MSJ) after Plaintiff voluntarily dismissed the County on April 1, 2026. This contemporaneous motion for sanctions – couched as a “Motion for Attorneys’ Fees, made pursuant to Code of Civil Procedure section 128.7” – was not withdrawn. Sanctions, in the form of attorneys’ fees, are requested in this motion in light of the asserted MSJ and various preceding communications related to the merit (or lack thereof) of Plaintiff’s case against the Defendant County.

The Court would inquire whether this unopposed matter is now **MOOT** because of Plaintiff’s dismissal of movant. If not moot, the Court will inquire whether Plaintiff failed to oppose due to perceived mootness and whether a brief continuance is needed to allow proper briefing on the merits.
